

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Cool Living LLC, *Complainant*

v.

ALPI U.S.A., Inc. and ALPI Air & Sea A/S,
Respondents.

DOCKET NO. 25-28

RESPONDENTS' VERIFIED ANSWER

Respondent ALPI U.S.A., Inc. and Respondent ALPI Air & Sea A/S (collectively, “Respondents” or “ALPI”) hereby answer Complainant Cool Living LLC’s (“Complainant” or “Cool Living”) Verified Complaint (the “Complaint”) as follows:

1. ALPI admits the allegations contained in paragraph 1 of the Complaint to the extent that Cool Living is a legal entity, but otherwise lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations contained in paragraph 1 of the Complaint and therefore denies the same.

2. Paragraph 2 of the Complaint sets forth a legal conclusion for which no response is required. To the extent a response is required, Respondents admit the allegations in paragraph 2 of the Complaint to the extent that Respondent ALPI U.S.A., Inc. is a corporation organized under the laws of the State of New York, with its principal place of business at 70 East Sunrise Highway, Suite 607, Valley Stream, NY 11581, but otherwise denies the allegations contained in paragraph 2.

3. Paragraph 3 of the Complaint sets forth a legal conclusion for which no response is required. To the extent that a response is required, Respondents admit the allegations in paragraph 3 of the Complaint to the extent that Respondent ALPI Air & Sea A/S is a corporation organized

under the laws of the country of the Kingdom of Denmark, with its principal place of business at Fastrupdalen 2, Hammerum DK-7400 Herning, but otherwise denies the allegations contained in paragraph 3.

4. ALPI lacks knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph 4 of the Complaint and therefore denies the same, deferring all questions of law to the Commission.

5. ALPI lacks knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph 5 of the Complaint and therefore denies the same, deferring all questions of law to the Commission.

6. ALPI lacks knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph 6 of the Complaint and therefore denies the same, deferring all questions of law to the Commission.

7. ALPI denies the allegations contained in paragraph 7 of the Complaint.

8. ALPI admits the allegations contained in paragraph 8 of the Complaint to the extent that Cool Living is a legal entity, but otherwise lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations contained in paragraph 8 of the Complaint and therefore denies the same.

9. ALPI admits the allegations contained in paragraph 9 of the Complaint to the extent that Cool Living purchased services from ALPI, but otherwise lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations contained in paragraph 9 of the Complaint and therefore denies the same.

10. ALPI denies the allegations contained in paragraph 10 of the Complaint.

11. ALPI denies the allegations contained in paragraph 11 of the Complaint.

12. ALPI admits the allegations contained in paragraph 12 of the Complaint to the extent that ALPI Logistics Inc. was involved in the warehouse logistics and administrative matters, but otherwise denies the allegations contained in paragraph 12.

13. ALPI admits the allegations contained in paragraph 13 of the Complaint.

14. ALPI admits the allegations contained in paragraph 14 of the Complaint.

15. ALPI admits the allegations contained in paragraph 15 of the Complaint.

16. ALPI denies the allegations contained in paragraph 16 of the Complaint.

17. ALPI denies the allegations contained in paragraph 17 of the Complaint.

18. ALPI denies the allegations contained in paragraph 18 of the Complaint.

19. ALPI denies the allegations contained in paragraph 19 of the Complaint.

20. ALPI denies the allegations contained in paragraph 20 of the Complaint.

21. ALPI admits the allegations contained in paragraph 21 of the Complaint to the extent that Cool Living and ALPI had communications on or around April 2024, but otherwise denies the allegations contained in paragraph 21.

22. ALPI denies the allegations contained in paragraph 22 of the Complaint.

23. ALPI denies the allegations contained in paragraph 23 of the Complaint.

24. ALPI admits the allegations contained in paragraph 24 of the Complaint to the extent that Respondent ALPI U.S.A. required Cool Living's parent company and certain individual officers of the company to sign a credit application with a guaranty, but otherwise denies the allegations contained in paragraph 24.

25. ALPI admits the allegations contained in paragraph 25 of the Complaint to the extent that ALPI provided Exhibit 1 to Cool Living, but otherwise denies the allegations contained in paragraph 25.

26. ALPI denies the allegations contained in paragraph 26 of the Complaint.
27. ALPI admits the allegations contained in paragraph 27 of the Complaint.
28. ALPI admits the allegations contained in paragraph 28 of the Complaint to the extent that certain transportation documents were issued by Respondent ALPI U.S.A., Inc. and Respondent ALPI Air & Sea A/S, and that ALPI Logistics Inc. issued certain invoices, but otherwise denies the allegations contained in paragraph 28.
29. ALPI denies the allegations contained in paragraph 29 of the Complaint.
30. ALPI admits the allegations contained in paragraph 30 of the Complaint.
31. ALPI admits the allegations contained in paragraph 31 of the Complaint to the extent ALPI Logistics Inc. provided a quotation for its warehouse services, but otherwise denies the allegations contained in paragraph 31.
32. ALPI denies the allegations contained in paragraph 32 of the Complaint.
33. ALPI denies the allegations contained in paragraph 33 of the Complaint.
34. ALPI denies the allegations contained in paragraph 34 of the Complaint.
35. ALPI denies the allegations contained in paragraph 35 of the Complaint.
36. ALPI admits the allegations contained in paragraph 36 of the Complaint to the extent that a statement of account was sent, but otherwise denies the allegations contained in paragraph 36 of the Complaint.
37. ALPI admits the allegations contained in paragraph 37 of the Complaint to the extent that a statement of account was sent, but otherwise denies the allegations contained in paragraph 37 of the Complaint.
38. ALPI denies the allegations contained in paragraph 38 of the Complaint.
39. ALPI denies the allegations contained in paragraph 39 of the Complaint.

40. ALPI denies the allegations contained in paragraph 40 of the Complaint.
41. ALPI admits the allegations contained in paragraph 41 of the Complaint to the extent that a statement of account was sent, but otherwise denies the allegations contained in paragraph 41 of the Complaint.
42. ALPI denies the allegations contained in paragraph 42 of the Complaint
43. ALPI denies the allegations contained in paragraph 43 of the Complaint
44. ALPI admits the allegations contained in paragraph 44 of the Complaint to the extent that Cool Living raised a dispute, but otherwise denies the allegations contained in paragraph 44 of the Complaint.
45. ALPI denies the allegations contained in paragraph 45 of the Complaint.
46. ALPI denies the allegations contained in paragraph 46 of the Complaint.
47. ALPI admits the allegations contained in paragraph 47 of the Complaint to the extent that it received a dispute, but otherwise denies the allegations contained in paragraph 47 of the Complaint.
48. ALPI denies the allegations contained in paragraph 48 of the Complaint.
49. ALPI denies the allegations contained in paragraph 49 of the Complaint.
50. ALPI denies the allegations contained in paragraph 50 of the Complaint.
51. ALPI denies the allegations contained in paragraph 51 of the Complaint.
52. ALPI denies the allegations contained in paragraph 52 of the Complaint.
53. ALPI denies the allegations contained in paragraph 53 of the Complaint.
54. ALPI denies the allegations contained in paragraph 54 of the Complaint.
55. ALPI denies the allegations contained in paragraph 55 of the Complaint.
56. ALPI denies the allegations contained in paragraph 56 of the Complaint.

57. ALPI denies the allegations contained in paragraph 57 of the Complaint.

58. ALPI admits the allegations contained in paragraph 58 of the Complaint to the extent that ALPI contends it is holding certain cargo pursuant to a lien under its general terms and conditions, but otherwise denies the allegations contained in paragraph 58 of the Complaint.

59. ALPI denies the allegations contained in paragraph 59 of the Complaint.

60. Paragraph 60 of the Complaint sets forth a legal conclusion for which no response is required. To the extent a response is required, ALPI denies the allegations contained in paragraph 60 of the Complaint.

61. ALPI admits the allegations contained in paragraph 61 of the Complaint to the extent that ALPI contends it is holding certain cargo pursuant to a lien under its general terms and conditions, but otherwise denies the allegations contained in paragraph 61 of the Complaint.

62. ALPI admits the allegations contained in paragraph 62 of the Complaint to the extent that Cool Living made a demand for the release of the held cargo, but denies the allegation that any such demand was made repeatedly, and otherwise denies the remaining allegations contained in paragraph 62 of the Complaint.

63. ALPI denies the allegations contained in paragraph 63 of the Complaint.

64. ALPI denies the allegations contained in paragraph 64 of the Complaint.

65. ALPI denies the allegations contained in paragraph 65 of the Complaint.

66. ALPI denies the allegations contained in paragraph 66 of the Complaint.

AS AND FOR RESPONSE TO COUNT I
VIOLATIONS OF 46 U.S.C. § 41102(c)
(Unjust and Unreasonable Practices in Handling Property)

67. ALPI repeats and realleges its responses to the allegations contained in paragraphs 1 through 66 of the Complaint as if fully set forth herein.

- 68. ALPI denies the allegations contained in paragraph 68 of the Complaint.
- 69. ALPI denies the allegations contained in paragraph 69 of the Complaint.
- 70. ALPI denies the allegations contained in paragraph 70 of the Complaint.
- 71. ALPI denies the allegations contained in paragraph 71 of the Complaint.
- 72. ALPI denies the allegations contained in paragraph 72 of the Complaint.
- 73. ALPI denies the allegations contained in paragraph 73 of the Complaint.
- 74. ALPI denies the allegations contained in paragraph 74 of the Complaint.
- 75. ALPI denies the allegations contained in paragraph 75 of the Complaint.
- 76. ALPI denies the allegations contained in paragraph 76 of the Complaint.
- 77. ALPI denies the allegations contained in paragraph 77 of the Complaint.

AS AND FOR RESPONSE TO COUNT II
VIOLATIONS OF 46 U.S.C. § 41104(a)(4)(E)
(Unjust or Unfair Practices in Adjustment and Settlement of Claims)

- 78. ALPI repeats and realleges its responses to the allegations contained in paragraphs 1 through 77 of the Complaint as if fully set forth herein

- 79. ALPI denies the allegations contained in paragraph 79 of the Complaint.
- 80. ALPI denies the allegations contained in paragraph 80 of the Complaint.
- 81. ALPI denies the allegations contained in paragraph 81 of the Complaint.
- 82. ALPI denies the allegations contained in paragraph 82 of the Complaint.
- 83. ALPI denies the allegations contained in paragraph 83 of the Complaint.
- 84. ALPI denies the allegations contained in paragraph 84 of the Complaint.
- 85. ALPI denies the allegations contained in paragraph 85 of the Complaint.

AS AND FOR RESPONSE TO COUNT III
VIOLATION OF 46 U.S.C. § 41104(a)(2)(A) and 46 C.F.R. § 532.5
(Service Not in Accordance With Tariff or Contract; Non-Compliant NRA)

86. ALPI repeats and realleges its responses to the allegations contained in paragraphs 1 through 85 of the Complaint as if fully set forth herein.

87. ALPI denies the allegations contained in paragraph 87 of the Complaint.

88. ALPI denies the allegations contained in paragraph 88 of the Complaint.

89. ALPI admits the allegations contained in paragraph 89 of the Complaint to the extent that ALPI provided Exhibit 1 to Cool Living, but otherwise denies the allegations in paragraph 89.

90. ALPI denies the allegations contained in paragraph 90 of the Complaint.

91. ALPI denies the allegations contained in paragraph 91 of the Complaint.

92. ALPI denies the allegations contained in paragraph 92 of the Complaint.

93. ALPI denies the allegations contained in paragraph 93 of the Complaint.

94. ALPI denies the allegations contained in paragraph 94 of the Complaint.

95. ALPI denies the allegations contained in paragraph 95 of the Complaint.

96. ALPI denies the allegations contained in paragraph 96 of the Complaint.

97. ALPI denies the allegations contained in paragraph 97 of the Complaint.

98. ALPI denies the allegations contained in paragraph 98 of the Complaint.

AS AND FOR RESPONSE TO COUNT IV
VIOLATIONS OF 46 U.S.C. § 41104(a)(14)
(OSRA Unreasonable Charges)

99. ALPI repeats and realleges its responses to the allegations contained in paragraphs 1 through 98 of the Complaint as if fully set forth herein.

100. ALPI lacks knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph 100 of the Complaint and therefore denies the same, deferring all questions of law to the Commission.

101. Paragraph 101 of the Complaint sets forth a legal conclusion for which no response is required. To the extent a response is required, ALPI denies the allegations in Paragraph 101 of the Complaint and defers all questions of law to the Commission.

102. ALPI denies the allegations contained in paragraph 102 of the Complaint.

AS AND FOR RESPONSE TO VI.
Causation and Injury to Complainant

103. ALPI denies the allegations contained in paragraph 103 of the Complaint.

AS AND FOR RESPONSE TO VII.
Alternative Dispute Resolution

104. ALPI admits the allegations in paragraph 104 to the extent the parties had discussions, but otherwise denies the allegations in paragraph 104.

105. ALPI lacks knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph 105 of the Complaint.

AS AND FOR RESPONSE TO VIII.
REQUEST FOR ORAL HEARING

106. ALPI admits the allegations contained in paragraph 106 of the Complaint to the extent that Complainant requests an oral hearing.

107. Any and all allegations, contentions, or prayers for relief not specifically admitted herein are expressly denied. Specifically, ALPI denies that Cool Living is entitled to any of the relief sought in subparagraphs 1 through 5 of Cool Living LLC's prayer for relief.

108. Without assuming any burden not imposed by law, and reserving all rights, ALPI asserts the following affirmative defenses to the claims alleged in the Complaint:

FIRST DEFENSE
Statutory Limitations

109. Cool Living lacks standing to seek civil penalties in this private complaint proceeding, and civil penalties must not be requested and will not be awarded in complaint proceedings.

SECOND DEFENSE
Lack of Jurisdiction

110. The Federal Maritime Commission lacks jurisdiction over Respondents.

THIRD DEFENSE
Real Party in Interest / Standing

111. The claims are barred, in whole or in part, because Cool Living LLC lacks standing and/or is not the real party in interest as to certain alleged injuries, shipments, charges, and/or cargo, including where the alleged injury was incurred by, or the property interest belonged to, a different entity or person.

FOURTH DEFENSE
No “Normal, Customary, and Continuous” Practice; No Proximate Cause / Actual Injury

112. The claims alleged are barred, in whole or in part, because Cool Living has not established (and cannot establish) that the alleged acts or omissions occurred on a normal, customary, and continuous basis, and because Cool Living has not established (and cannot establish) proximate cause and actual injury attributable to any alleged Shipping Act violation.

FIFTH DEFENSE
Contractual Limitations Period

113. The claims alleged in the Complaint against ALPI are barred, in whole or in part, by the applicable contractual limitations period(s) in the terms and conditions underlying the transaction, including, but not limited to, ALPI’s Terms and Conditions of Service and ALPI’s Warehouse Receipt Terms and Conditions.

SIXTH DEFENSE
Contractual Limitation of Liability

114. The claims alleged may be barred, in whole or in part, by the terms and conditions underlying the transaction, including, but not limited to, ALPI's Terms and Conditions of Service and ALPI's Warehouse Receipt Terms and Conditions.

SEVENTH DEFENSE
Exclusion of Damages

115. The claims alleged may be barred, in whole or in part, by the terms and conditions underlying the transaction, including, but not limited to, ALPI's Terms and Conditions of Service and ALPI's Warehouse Receipt Terms and Conditions.

EIGHTH DEFENSE
Assent by Conduct

116. The claims alleged are barred in whole or in part by reason of ratification, agreement, or consent to the alleged conduct by Cool Living and/or its members.

NINTH DEFENSE
Estoppel and Waiver

117. Cool Living is estopped and/or has unclean hands or/and waived its claim alleges, in whole or in part, by its conduct, including accepting services under the parties' course of dealing and continuing to utilize ALPI's services.

TENTH DEFENSE
Lawful Exercise of Lien Rights

118. The claims alleged are barred, in whole or in part, because ALPI lawfully exercised lien rights under the applicable governing terms and conditions, including, without limitation, ALPI's Terms and Conditions of Service, Section 14 (General Lien and Right to Sell Customer's Property) and, to the extent applicable to warehousing or storage services, ALPI's Warehouse Receipt Terms and Conditions, Section 8 (Lien Rights).

ELEVENTH DEFENSE
Lack of Proximate Cause and Speculative Damages

119. Cool Living's alleged damages were not proximately caused by any act or omission of ALPI and, in any event, are remote, speculative, and not recoverable as a matter of law.

TWELFTH DEFENSE
Failure to Mitigate

120. The claims alleged in the Complaint are barred by Cool Living's failure to mitigate the alleged damages.

THIRTEENTH DEFENSE
Failure to State a Claim

121. Cool Living has failed to allege sufficient facts to state a claim for relief.

FOURTEENTH DEFENSE
Affiliate Invoicing

122. The claims alleged are barred, in whole or in part, because performing administrative tasks through an affiliate does not constitute acting as an OTI or "holding out" where the licensed OTI/NVOCC entities performed the transportation intermediary services and remained responsible for the shipments, and because Cool Living cannot establish any Shipping Act violation based solely on affiliate billing or back-office functions.

FIFTEENTH DEFENSE
No Unlawful or Unreasonable Practice

123. ALPI's practices were neither unjust nor unreasonable nor unlawful.

SIXTEENTH DEFENSE
No Unlawful or Unreasonable Practice

124. Any reparations or monetary relief must be reduced or offset, in whole or in part, by the amount of lawful, due, and owing charges for services provided, including unpaid charges secured by applicable lien rights.

SEVENTEENTH DEFENSE

Improper Venue

125. The parties have agreed to resolve any disputes arising out of the underlying transactions in the courts of New York.

EIGHTEENTH DEFENSE

Prior Pending Action

126. The Commission should stay or dismiss this action because there is a prior pending action in New York.

NINETEENTH DEFENSE

Failure to Satisfy Conditions Precedent

127. Cool Living failed to satisfy one or more conditions precedent prior to filing this FMC action.

TWENTIETH DEFENSE

No Knowing or Willful Violation

128. At no time did ALPI violate the Act or otherwise knowingly or willfully violate the Act.

WHEREFORE, Respondent ALPI U.S.A., Inc. and Respondent ALPI Air & Sea A/S ALPI, respectfully request that the Commission:

1. Dismissal of this proceeding and remand to the appropriate forum for full adjudication;
2. The complaint be dismissed with prejudice; and
3. Award ALPI its costs and attorneys' fees incurred in defending against the claims alleged in the Complaint, and to the extent permitted by contract, statute, or rule, reasonable attorneys' fees incurred in defending against such claims.

Request for Oral Hearing. Respondents consider that an oral hearing, including cross examination, is necessary and appropriate and respectfully requests that such hearing be held in Washington D.C.

This 14th day of January, 2026.

MILLER & MARTIN PLLC

/s/ Michael P. Kohler

Michael P. Kohler
1180 W. Peachtree Street NW, Suite 2100
Atlanta, Georgia 30309
Telephone: (404) 962-6100
Michael.Kohler@millermartin.com
Counsel for Respondents

MARTIN DAHLGAARD ATTORNEY P.C.

/s/ Daniel E.L. Bang

Daniel E.L. Bang
45 Main Street, Suite 29
Brooklyn, New York 11202
Telephone: (646-580-9880
delb@usadenmarklaw.com
Counsel for Respondents

ALPI U.S.A., Inc.
70 East Sunrise Highway, Suite 607
Valley Stream, NY 11581
jonathan.mcfadden@alpiusa.com

ALPI Air & Sea A/S
Fastrupdalen 2
7400 Herning
Denmark
mhn@alpi.dk

Certificate of Service.

I hereby certify that on the below date a genuine copy of this document was filed via electronic mail with the Secretary of the Federal Maritime Commission and a copy was served via electronic mail on the following:

Christopher Nolan
Email: chris.nolan@hklaw.com
Ashleigh Higgs
Email: ashleigh.higgs@hklaw.com
Attorneys for Complainant

This 14th day of January, 2026.

MILLER & MARTIN PLLC

/s/ Michael P. Kohler
Michael P. Kohler
1180 W. Peachtree Street NW, Suite 2100
Atlanta, Georgia 30309
Telephone: (404) 962-6100
Michael.Kohler@millermartin.com
Counsel for Respondents

VERIFICATION

I hereby declare and attest under the penalty of perjury that I have read the foregoing ANSWER and believe, to the best of my knowledge, information, and belief, that the facts stated therein are true and correct.

This 14th day of January, 2026.

ALPI U.S.A., Inc.
ALPI AIR & SEA A/S

A handwritten signature in black ink, appearing to read 'Michael Haahr Hansen', is written over a horizontal line.

By: Michael Haahr Hansen

Title: Chief Logistics Officer